



ROYAL NORWEGIAN MINISTRY OF
EDUCATION AND RESEARCH

Tenth Consultation

on the Implementation of the

Convention and Recommendation against

Discrimination in Education (1960)

National report

NORWAY

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1 Introduction

Norway is a State Party to the UNESCO 1960 Convention and Recommendations against Discrimination in Education. The Convention was ratified in 1963. UNESCO's 1960 convention on its own is not specifically incorporated into national legislation.

1.1 Summary of main initiatives related to the Convention

For the reporting period (2016 – 2020) these main issues are highlighted in the report

- Incorporation of equality and non-discrimination in the Constitution of Norway
- Implementation of inclusive policies in kindergartens and primary and secondary education addressing social-pedagogical measures, professional support, financing and technical provisions
- Follow-up of the Action Plan against Antisemitism (2016- 2020)
- Follow-up on a public committee report "Assimilation and Resistance" on Romani People/tater
- The new core curriculum and subject curriculum (the Knowledge Promotion 2020)
- The government strategy on integration (2019-2022)
- Initiatives to reduce drop-out at upper secondary level
- Measures against bullying in kindergartens and schools
- Initiatives to increase basic competencies among adults
- Measures to increase the integration of immigrants and Norwegian-born with immigrant parents

1.2 Revision of relevant legal instruments

The Convention has been made directly applicable by incorporation in Norwegian domestic legal instruments.

By the Storting (Norwegian parliament) decision of 13 May 2014, the Constitution of Norway was supplemented with a number of human rights provisions. The principles of equality and non-discrimination were incorporated into Article 98 of the Constitution with the following wording:

"All people are equal under the law. No human being must be subject to unfair or disproportionate differential treatment."

In addition, several conventions dealing with human rights are incorporated in the Norwegian Act of Human Rights:

- Convention for the Protection of Human Rights and Fundamental Freedoms (including Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms of 4 November 1950, Protocol no. 4 to the Convention for the Protection of Human Rights and Fundamental Freedoms, Securing Certain Rights and Freedoms other than those already included in the Convention and in the First Protocol Thereto, Protocol no. 6 to the Convention for the Protection of Human Rights and Fundamental Freedoms, Concerning the Abolition of the Death Penalty, Protocol no. 7 to the

Convention for the Protection of Human Rights and Fundamental Freedoms, Protocol No. 13 to the Convention for the Protection of Human Rights and Fundamental Freedoms, concerning the Abolition of the Death Penalty in All Circumstances)

- International Covenant on Economic, Social and Cultural Rights
- International Covenant on Civil and Political rights (including Optional Protocol to the International Covenant on Civil and Political Rights, Second optional Protocol to the International Covenant on Civil and Political Rights, Aiming at the Abolition of the Death Penalty)
- Convention on the Rights of the Child (including Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict, Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography)

The Human rights Act and its conventions are given precedence over other national acts. Several of these conventions contain rights and obligations concerning equality and anti-discrimination. The provisions of the Conventions can be invoked before and given effect to by the courts of justice. The state authorities are often asked to interpret the conventions. As an example, the Ministry of Education and Research has received questions on whether it implies religious discrimination to forbid pupils to carry religious symbols in schools, and questions concerning the children of asylum seekers and their right to access to education in Norway.

1.3 "Anti-discrimination legislation" - General

In 2013, the Norwegian Parliament (the Storting) adopted four new equality and antidiscrimination acts, which entered into force 1 January 2014. These were the Gender Equality Act (gender), the Anti-Discrimination and Accessibility Act (disability), the Ethnicity Anti-Discrimination Act (ethnicity, religion and belief) and the Sexual Orientation Anti-Discrimination Act (sexual orientation, gender identity and gender expression). The acts cover all spheres of society, including education. The Sexual Orientation Discrimination Act was firstly enacted in 2013, prohibiting discrimination and harassment in all areas of society based on gender identity and gender expression as well as on sexual orientation. Until 2013, discrimination and harassment on the basis of sexual orientation was prohibited only in the workplace through the Working Environment Act. The anti-discrimination acts on gender, disability and ethnicity are largely continuation of provisions laid down in the former acts on discrimination of 1978, 2005 and 2008. The changes are primarily technical or matters of wording. The aim was to harmonize and simplify the legislation.

The Government aims to improve the protection against discrimination for everyone and intended therefore to propose a comprehensive equality and anti-discrimination act. The proposal called for replacing the four existing gender equality and anti-discrimination acts with a new consolidated act. The acts also provide different sorts of protection depending on the basis of the discrimination and its social context. The purpose of gathering the acts in one legal framework is to make the legal protection against discrimination more accessible and thus more efficient. The Act applies in all sectors of society, including family life and other personal relations.

The Equality and Anti-Discrimination Act, in force since January 2018, prohibits discrimination on the basis of gender, pregnancy, leave in connection with childbirth or adoption, care responsibilities, ethnicity, religion, belief, disability, sexual orientation, gender identity, gender

expression, age or combinations of these factors. Essentially, the protections are to be equal no matter the discriminatory grounds. The statute must nevertheless take into account the special characteristics of certain types of discrimination. The protection against discrimination due to pregnancy and the rules on universal design and individual accommodation for persons with disabilities are continued in The Act. Public authorities, employers and employer and employee organizations must make active, targeted and systematic efforts to promote equality and prevent discrimination. Amendments to strengthen this duty entered into force in January 2020.

The Act aims specifically at improving the position of women and minorities. It imposes certain obligations upon public and private enterprises to secure accessibility (universal design) and individual accommodation for persons with disabilities. The Act also imposes a strict obligation to secure universal design of information and communication technology solutions (ICT) upon both public and private sector enterprises. This obligation was extended to all private and public schools from 2018. As regards to education, the Act has an obligation that both teaching and learning materials shall reflect the principle of equality and non-discrimination of grounds mentioned by the Act. It was only the former Gender Equality Act which states that learning materials shall be based on gender equality. The provision includes oral teaching as well as printed learning materials.

According to the Equality and Anti-Discrimination Act children with disabilities shall have a right to suitable individual adoption in municipal day care facilities to ensure equal development and activity opportunities (art. 20). Pupils and students with disabilities who attend a school or educational institution shall have a right to suitable individual adoption of the place of learning, teaching, teaching aids and examinations to ensure equal training and education opportunities (art. 21.)

1.4 Equality and Anti-Discrimination Ombudsman and Anti-Discrimination Tribunal

The Equality and Anti-discrimination Ombud is an independent body that promotes equality and prevents discrimination in all areas of society. The Ombud provides guidance on the anti-discrimination legislation and ensures that Norwegian legislation and administrative practice are consistent with the Convention on the Elimination of All Forms of Discrimination against Women, the International Convention on the Elimination of All Forms of Racial Discrimination and the Convention of the Rights of Persons with Disabilities. Complaints concerning breaches of the legislation are dealt with by the Anti-Discrimination Tribunal.

The Norwegian enforcement system was changed in 2018. These changes strengthened the Ombudsman's role as a proactive agent for equal opportunities, and the Tribunal was given the authority to award redress in discrimination cases within working life and compensation in simple cases. From January 2020, the Anti-Discrimination Tribunal's authority was extended, so that it also may handle sexual harassment cases.

The Equality and Anti-Discrimination Ombudsman was also given a wider mandate regarding guidance and prevention work in these cases.

2 Norway's approach to the 10th periodical reporting

Major principles and values reflected in the 1960 Convention are similar to fundamental values in the Norwegian welfare state underpinning the integration and social inclusion policies. It is also in line with Norway's approach to Agenda 2030 and particularly Sustainable Development Goal 4 (SDG 4): Ensure inclusive and equitable quality education and promote lifelong learning opportunities for all. As stated in the Reporting Guidelines: *"The Convention has been recognized as a cornerstone of Education 2030 agenda."* (p. 1)

While SDG 4 does not specifically mention discrimination, its targets emphasize equal access for girls and boys, inclusion of persons with disabilities, indigenous peoples and people in vulnerable situations, and safe non-violent, inclusive and effective learning environments for all.

A well-educated population is the greatest asset of every nation. The education system lays the foundation for social integration and economic growth and is vital to the development of a democratic and unified society. Education is also the individual right of every human being and shall ensure personal growth and intellectual development. As stated by the World Bank: "By improving their skills, health, knowledge, and resilience – their human capital – people can be more productive, flexible and innovative."¹

It is a great challenge to any education and training system to facilitate learning and optimal realisation of both individual and social potentials. This is particularly so in a context of constant change and high levels of migration, where education and training needs are changing and become increasingly diversified. The Norwegian government has chosen to address this challenge by means of inclusive education. Equal opportunities and non-discrimination are basic principles and aims in terms of access, stable attendance and learning. The education system is meant to give equal access to and accommodate optimal learning for *all* individuals and contribute to reduced social inequalities.

Many different measures have been implemented with the aim to promote equity and equality in result. They target specific vulnerable or under-privileged groups and individuals. Above compulsory education, merit is the only relevant factor to regulate progress to higher education levels and specialized studies.

Norway has participated in earlier periodic consultations on the implementation of the 1960-Convention and Recommendation. An updated version of the report of 2012 was submitted in the ninth consultation round, in 2016-2017. A comprehensive national system of legal and policy instruments was described in the report.

The Reporting Guidelines state that: *"Member States that already reported on the 9th Consultation (2016-2017) are invited to refer to their reports when appropriate."* (p. 2)

Accordingly, this 10th report will be an updated version of the last report on the 1960 Convention and Recommendations.

¹ World Bank Group 2018 "The Human Capital Project" page 2: <https://openknowledge.worldbank.org/bitstream/handle/10986/30498/33252.pdf>

2.1 Definitions

This report applies the definitions of “discrimination” and “education” as outlined in the 1960 Recommendation against discrimination in education:

“1. ... the term ‘discrimination’ includes any distinction, exclusion, limitation or preference which, being based on race, colour, sex, language, religion, political or other opinion, national or social origin, economic condition or birth, has the purpose or effect of nullifying or impairing equality of treatment in education and in particular:

- (a) Of depriving any person or group of persons of access to Education of any type or at any level;
- (b) Of limiting any person or group of persons to education of an inferior standard;
- (c) Subject to the provisions of section II of this Recommendation, of establishing or maintaining separate educational systems or institutions for persons or groups of persons; or
- (d) Of inflicting on any person or group of persons conditions which are incompatible with the dignity of man.

2. ... the term ‘education’ refers to all types and levels of education, and includes access to education, the standard and quality of education, and the conditions under which it is given.

3 Norwegian education and training in brief

3.1 The system

Norway has a comprehensive public education system, covering all levels from Kindergarten to higher education, and including vocational education and training, as well as adult education. Whereas all public education from primary education and upwards is delivered free of entrance and tuition fees, parents have to pay a fee for children in Kindergarten.

3.2 Pre-primary education (age 0 to 5)

Early Childhood Education and Care (ECEC) is a non-obligatory part of the education system in Norway. ECEC is provided by kindergartens. These are pedagogical institutions that cater for children from 0 to 5 years of age. Some 50 % of the kindergartens are privately owned and operated with public support, based on formal approval by the authorities. Since 2009 all children, irrespective of their background, have a legal right to a place in kindergarten from 1 year of age².

Nearly all children in Norway have been to Kindergarten before entering primary school. The participation rate for all four- and five-year olds is 97 %. A high proportion of children less than 3 years of age also have a place in a kindergarten. For minority language speaking children, the participation rate is a little lower than for the age cohort as a whole. This also holds true for the four- and five-year olds, but the gap is more evident for younger minority children. 93.3 % of minority languages speaking 5-year olds now attend kindergarten before entering school. However, participation rates for minority languages speaking children have increased also for the youngest children. Participation of minority language speaking children aged 1-2 years has risen from 25 % in 2005 to 83,9% in 2019.

3.3 Primary and secondary education including vocational training (6 – 19 years)

Mainstream, basic education in Norway is 7 + 3 + 3 years – primary, lower secondary and upper secondary education and training – of which the first ten years are compulsory. It has a centralised framework with national curricula, financing and quality control. But the delivery of education and training is decentralised to a high number of providers. Most students are enrolled in public education institutions. Both public and private providers of national education and training receive financial support from the government. They are subjected to national quality control and are obliged to organize examination and assessment according to national guidelines.

Entrants to upper secondary level can choose between 12 alternative education programs. Three of them prepare primarily for further academic studies, whereas the other nine programs have a vocational orientation.

Vocational Education and Training (VET), including apprenticeship, is a fully integrated part of upper secondary education and training. In general, upper secondary VET includes two years

² The Kindergarten Act states that children, who reach the age of one no later than by the end of October in the year a kindergarten place has been sought, are upon application, entitled to a place in a kindergarten in accordance with this act with regulations.

of school-based education with practical training in school workshops and short work placements in industry, followed by two years of formalised apprenticeship training and productive work in an enterprise or public institution. The training enterprises receive financial support throughout the apprenticeship period. National curricula in upper secondary VET cover the school based as well as the apprenticeship part of the training programs. The apprenticeship is finalised with a (mainly) practical examination for the Trade certificate.

3.4 Tertiary education (universities and university colleges)

There are some study programmes that require specific subjects from upper secondary education and/or practice, and there are several ways to enter higher education. Acceptance to higher education requires a Diploma from upper secondary school with general admission requirements. This is awarded non-vocational students or vocational students who choose to not take their apprenticeship. Conversely, study competence can be achieved by the so-called 23/5 rule where applicants must be 23 years of age and have a total of five years of education and/or work experience, as well as passed courses in Norwegian, English, mathematics, science and social studies. To be qualified for certain study programmes (for instance engineering), the applicant must cover advanced courses in science, such as mathematics, physics and chemistry. Admittance to Bachelor level programs is coordinated through the Norwegian Universities and Colleges Admission Service based on grade point average from upper secondary education, with the highest-ranking students offered a place. Additional points are awarded students with science or language specialization from upper secondary education. The number of points awarded also depends on the students age, and whether the student have completed one year of higher education, military service, folk high school or vocational training. Secondary school grades can later be improved via the arrangement of re-sit exams, but half of the study places are only offered based on original transcripts without age or study points. A student at a university or a university college can get scholarships and/or loans from The State Educational Loan Fund. A student welfare organization shall, in cooperation with education institutions, offer student welfare, such as student housing.

3.5 Adult education

National investments in updating and further education for adults are significant. Adults have a statutory right to primary and secondary education and training, free of charge, delivered by the municipalities and counties, respectively. The social partners cooperate closely with the government to ensure that relevant Life-Long Learning (LLL) opportunities are available.

Around one quarter of the adult population participates in various types of work-related updating and further education and training annually. Universities and other higher education institutions, as well as a high number of non-profit and commercial providers deliver education according to national curricula on secondary and tertiary levels, as well as work and personally oriented courses. Full-time, part-time and evening courses, and internet-based teaching, are available to ensure flexible options.

3.6 Recognition of prior learning

All adults have the right to get their knowledge and skills acquired through work experience, non-formal and informal learning, evaluated and validated. The validation process often leads to a partial or complete certificate of upper secondary education and training.

Provision of adult training often requires adaptation to the needs of the learner. If the results of the validation procedure show that an adult needs only parts of a particular subject to achieve a formal qualification, the local authorities are in principle obliged to provide the learner with precisely that training. This is currently not always feasible, but several projects are exploring the possibilities of creating more flexible provisions than those available today.

4 Major features of Norwegian education and training

In Norway, education is rights-based from the age of one. Every person is entitled to get the opportunity and necessary support to identify and develop her/his talents to the full potential, including theoretical, practical, cultural and social aspects. It is furthermore the responsibility of the education system to provide the various sectors of society with qualified, critical and constructive individuals that will actively support and contribute to the maintenance and further development of the economy and democratic welfare society.

The Kindergarten Act states that the institutions in their daily operation shall take account of children's age, level of functioning, gender, and social, ethnic, and cultural background, including the language and culture of Sami children (Section 2 – 4).

The Education Act states that teaching shall be adapted to the abilities and aptitudes of the individual pupils and apprentices. Emphasis shall be placed on constructive cooperation between teachers and pupils, between the school and the home, between the school and the workplace, and between apprentices and companies. All persons associated with school or with training establishments: "... shall make efforts to ensure that pupils and apprentices are not injured or exposed to offensive words or deeds".

Education is considered a national, public responsibility and the education and training policy is shaped in the interface between cultural, economic and social distribution policies.

Vocational education and training (VET) are strongly emphasized in mainstream education, as well as in a broader "Life-Long Learning" (LLL) perspective. Formulation of education and training policy, as well as the implementation of VET always include a wide variety of stakeholders in civil society, including enterprises.

All residents are to be ensured equal rights of access to quality education, irrespective of gender and economic, social, geographic and cultural background. Accordingly:

- Education from primary and onwards in the public domain, including higher education, is supplied free of charge; costs are covered by public budgets³;
- Every person that has completed ten years of compulsory education is entitled by law to three years of upper secondary general education or VET, by her or his own choice;
- The supply of education and training should be of high quality and broad enough to allow for a range of choices irrespective of geographical location and social factors;

Education is regarded a means for promoting equity and reduce inequalities in society. Thus: "When social inequality increases, efforts to combat the differences must be intensified in the education system."⁴

4.1 Administration and delivery

The Ministry of Education and Research (MOER) has overall responsibility for national policy development and administration of early childhood education and care (ECEC), mainstream education and vocational training at all levels. Administrative responsibilities are mandated to government agencies: Directorate for Education and Training (UDIR), Norwegian Agency for Quality Assurance in Education (NOKUT), Skills Norway (Kompetanse Norge), The Norwegian

³ Children in kindergartens and pupils in private institutions pay a tuition fee

⁴ St. meld. nr. 16 (2006-07)

Directorate for ICT and Joint Services in Higher Education & Research (Unit) and Norwegian Agency for International Cooperation and Quality Enhancement in Higher Education (Diku).

The 356 municipalities are responsible for organising the ECEC as well as primary and lower secondary education. Upper secondary general education (GE) and VET is the responsibility of the 11 counties. Both levels cater for both young people and adults. Kindergartens are owned either by the municipalities or different private entities, parents, volunteer organisations etc. Public primary- lower secondary and upper secondary schools are owned and run by the municipalities and counties, respectively, but the costs are covered by the central government⁵. Both municipal and private kindergartens are publicly funded. Public funding covers 86,6 % of the running costs in municipal kindergartens, the rest is covered by parents (13.4 %). Both counties and municipalities report directly to the national level. A County Governor represents the government in each county. The County Governor's education office monitors and guides the kindergartens, as well as the delivery and results of compulsory and upper secondary GE and VET, including adult education. UDIR is responsible for the implementation of national policies at the levels of kindergarten, primary and secondary education and training, including the development of curricula, national examinations and quality control.

Public-private partnerships (PPPs) constitute the backbone of upper secondary VET. Employers' organizations and trade unions, individual companies and public institutions are major contributors to policy formation, curriculum development and operation of the system at national, county and local levels. Social partner organisations and the industry hold the majority of seats in all the most influential bodies at national and county level. At local level, Training Offices owned by local enterprises and institutions recruit and supervise training enterprises during apprenticeship on behalf of the county authorities. They often provide training for company instructors and vocational theory classes to apprentices.

Public higher education institutions are owned by and organised directly under MOER and financed over its budget, but they have a high degree of professional and economic autonomy.

Some 12 – 15 % of students in higher education attend private institutions. Most of these receive financial support from MOER provided they meet professional requirements and deliver study programs that comply with national requirements. Approval and quality control of public and private institutions, programs and achievements is conducted by the Norwegian Agency for Quality Assurance in Education).

⁵ Municipalities and counties receive a block grant from the government. Schools do not receive funding directly from the government.

5 Measures to Enhance Inclusive Education - Overview

5.1 Inclusion in kindergartens and schools

Inclusive education has for decades been a central policy principle and goal. Inclusion is the basic principle and goal of the government's educational policy and targets private and public kindergartens, public schools and private schools with state funded support. This means that children from different backgrounds and with different needs and abilities come together in the same kindergartens and common schools of high quality, and that each child should feel that they belong and are allowed to have a sense of achievement, adapted to the circumstances and abilities of each child.

Regulations such as the Kindergarten Act and the Framework Plan for the content and Tasks of Kindergartens apply to all kindergartens regardless of ownership. The Purpose clause in the Kindergarten Act states that "The kindergarten shall promote democracy and equality and counteract all forms of discrimination" (Section 1). Kindergartens shall "help to ensure social equality" and must strive to promote "gender equality in their educational practice. In their daily operation the institutions shall take account of children's age, level of functioning, gender, and social, ethnic, and cultural background, including the language and culture of Sami children (Section 2 – 4).

Children with disabilities are entitled to priority for admission to kindergarten. Children who are subject to an administrative decision of the Child Welfare Service Act, are also entitled to priority admission. 3,3 % of children in Kindergarten receives special pedagogical support in accordance with regulation in the Kindergarten Act.

Approximately 8 percent of all pupils in primary and lower secondary education get special needs education. The extent is highest in the 10th grade with 10,6 %, and lowest in the first grade with 3.7 percent. 43 percent of the students requiring special needs education get this mainly within the regular of the class environment. The gender distribution in special needs education has remained stable for a long time, with boys accounting for around 69%.

The purpose of special pedagogical assistance is to provide children with early support in their development of e.g. language and social skills. The right to special pedagogical assistance applies regardless of whether the child attend kindergarten or not. A majority of children now attend Kindergartens. The regulation establishes that municipalities have the duty to ensure that children with disabilities receive appropriate provision. Parents are given the right to appeal to the County Governor.

Several specific measures that support and promote Inclusive Education are in operation, adapted to the various types of education and target groups. The arrangements fall in four major categories.

Each municipality and county authority shall provide a pedagogical psychology service (PPT). The service has a double mandate. It is responsible for producing expert assessments where the law demands it, both in respect of school pupils and children under compulsory school age. The service also has a statutory responsibility for contributing towards the development of competencies and organisational development in kindergartens and schools (Kindergarten Act, Education Act).

Needs-based priority entrance to kindergartens and statutory right to a place from 1 year of age. Needs-based priority entrance to upper secondary school. Follow-up service for dropouts and non-attendants at upper secondary level. The national agency for special needs education (Statped) is managed by the Ministry of Education. Statped assists local authorities and provides special teaching services at individual and system level in areas. According to the Education Act, Education shall be adapted to the abilities and aptitudes of the individual pupil, apprentice and training candidate (Education Act 1-3). In 2018 a new statutory provision entered into force on early intervention in the Education Act, 1-4. In grades 1 to 4, the school must ensure that pupils who are at risk of lagging behind in reading, writing or mathematics, quickly are given suitable intensive instruction so that they achieve the expected progress. If it is in the pupil's best interest, the intensive instruction may be given on a one-to-one basis for a short period.

Pupils who do not or cannot benefit sufficiently from mainstream education are entitled to special needs support.

Primary and lower secondary school pupils have the right to attend the school that is closest to where they live, or the school designated for the catchment area where they live. (Education Act). The pupils may be divided into groups as necessary. The groups must not be larger than is need for social belonging. Pupils shall not normally be organised according to level of ability, gender or ethnic affiliation. (Education Act).

The operational understanding of and approach to inclusive education is that every individual shall be provided optimal learning conditions in the regular learning context – as far as possible. Only in exceptional cases students should receive instruction outside the regular learning context. In April 2020 the Norwegian Parliament approved a Government white paper entitled Early intervention and inclusive education in kindergartens, schools and out-of-school-hours care – Meld. St. 6 (2019 – 2020). The White Paper includes a range of measures to improve social inclusion in education.

One overarching goal of the policies for inclusive education is to further improve quality in kindergartens and schools so that all children and pupils can learn, experience a sense of achievement and develop in an inclusive environment. Better quality mainstream provision could reduce the need for special arrangements for individual children. Improved special needs provision could also ensure that children and young people develop better and learn more. Culture, knowledge, skills and capacity are key factors in improving quality.

In the white paper the government presents concrete measures to improve the education system. The government's measures will however not in themselves be enough to succeed with early intervention and more inclusive practices in kindergartens and schools. The knowledge base used for the white paper shows that practices are not always consistent with the legislation. We are reliant on municipalities and counties working diligently to promote inclusion and early intervention and meeting the requirements stipulated in the legislation. Inclusion in kindergartens and schools means that all children and pupils should feel that they belong. They should feel safe and discover that they are valuable and that they are able to help shape their own learning. An inclusive environment welcomes all children and pupils. The White Paper includes 85 measures addressing quality, culture, knowledge, skills and capacity.

The government will amongst others delimit Statped's⁶ mandate and make its services more accessible to children and pupils with complex challenges and/or long-term and extensive special needs. This will have consequences for the way in which Statped is organised. Children and pupils with special needs must be identified early and given help when they need it.

The expertise therefore needs to be where the children and pupils are, locally in kindergartens and schools and in the local support system. The government therefore wants to reallocate resources from Statped to professional development programmes in the municipalities. The government will launch an extensive and long-term professional development programme in the area of special needs education and inclusion aimed at kindergartens, schools and local support systems with particular emphasis on the pedagogical psychology service.

The government also wishes to improve the pedagogical psychology service's ability to take preventive action and help kindergartens and schools support children and pupils with special needs in the best possible way and will therefor clarify in the Kindergarten Act and Education Act that the pedagogical psychology service should take a preventive approach and make early interventions.

A good local support structure around the children and teachers is important in order to ensure inclusive and adapted pedagogical provision. Various forms of specialist expertise are often needed to ensure good and comprehensive provision. The government is keen to strengthen multidisciplinary co-operation in and around kindergartens and schools, and will propose to harmonise and strengthen the regulations on co-operation for children and young people in the sector legislation, including rule changes to ensure comprehensive and co-ordinated services for children and young people.

The government wants to obtain more knowledge about how provision for children and young people in kindergartens and schools can be better adapted and inclusive for everyone. We will create a centre for research into special needs education and inclusive practices to increase research capacity in the field in the long term. We will also launch pilots and commission research to gain experience and knowledge of how kindergartens, schools and municipalities can work to prevent problems from building up and how special needs expertise can be applied to better benefit the children. The outcome of the pilots and research can provide a starting point for further policy design.

The government wants to ensure more equitable out-of-school-hours-care (SFO) provision across the country and will produce a national framework plan for SFO with room for local variations. We want as many children as possible to attend SFO, irrespective of background. We will therefore be offering discount schemes.

Experience shows that the national framework of Norwegian education and training, including policy, strategies, regulations, funding and administrative arrangements, to a large extent is in compliance with major inclusive education principles. However, some weaknesses and challenges have been identified as regards the practical implementation of inclusive education principles and goals:

⁶ Statped - the national agency for special needs education

The quality of Norwegian kindergartens is high and the ECEC attendance is far above most other OECD countries, especially for the younger age-groups⁷. The importance of early Norwegian language stimulation and social and emotional preparation for a satisfactory transition to compulsory education is well documented. Despite recent developments with an increase in the number and coverage of qualified kindergarten teachers and assistants with formal qualification in ECEC, in some regions there is still a shortage of qualified kindergarten teachers. There are still some children that are not enrolled in kindergarten and hence are excluded from this benefit. It is worrying that many children from immigrant families do not attend despite financial stimulation arrangements such as reduced parental fees (set to a maximum of 6 % of family income, capped at 3135 NOK/month) or free 20 hour core time/week for 2, 3, 4 and 5 year old children in families with low income.

5.2 Knowledge Promotion 2020 – New Curriculum Reform

Norway has recently introduced a major curriculum reform for primary and secondary education. The new core curriculum was introduced in 2017 and the subject curriculum, called the Knowledge Promotion 2020 will be implemented from the next school year 2020/21.

The aim is to facilitate better learning for all, but also to better integrate generic competencies such as critical thinking and democratic citizenship. Education is about learning and about changes and preparing for the future. A whole-school approach shall promote learning and promote common values that are the foundation of our society. These are pivotal to respond to the major challenges we are facing in Norway, but also internationally. Therefore, the new curriculum emphasizes both the importance of certain values as well as deep learning and the ability to develop key competencies in different subjects in a balanced way.

The new core curriculum, *Core curriculum – values and principles for primary and secondary education*, was published in September 2017, and is a part of the framework for the renewal of the school subjects. Key elements in the core curriculum are e.g. human rights, democratic citizenship, inclusion and cultural awareness. Three new cross-curricular topics will be integrated in the subjects: Sustainable development, democracy and citizenship, and health and life skills. These topics are interdisciplinary-related and will be reflected in all subjects and in all grades where appropriate.

The renewal of the subject curricula will focus on relevance (authenticity), better progression (coherence), less focus on details and fewer learning objectives (focus). Over time, new themes and new objectives for expected competence are implemented into the curriculum and nothing is taken out. This creates a *curriculum overload* in school, which is a challenge when school is to provide good learning processes and lasting understanding. Therefore, there is a need to decrease the number of disciplines in the subjects' curricula: the subjects are developed to help pupils to undertake more in-depth studies. In-depth learning in school will help the pupils to master key elements in the subjects better and make it easier to transfer learning from one subject to another, or from one situation to another (Choice). Five basic skills are still to be given priority in the curriculum, these are: Reading, writing, verbal skills, numeracy and digital skills. The rationales for giving priority to the basic skills are that these are necessary requirements for learning and development in school, society and in working life. They are decisive for the individual's ability to master working life and participate as a critical and reflected citizen.

⁷ Participation rate for children aged one is 73.9 per cent, for children aged 2 93.2 per cent in 2019

5.3 Inclusion in Higher Education

The Norwegian Government's aim is equal access to higher education. The act relating to universities and university colleges is to ensure that students have equal rights for admission to higher education, and that universities and university colleges facilitate this happening. A student at a university or a university college can get scholarships and/or loans from The State Educational Loan Fund. A student welfare organization shall, in cooperation with education institutions, offer students welfare, such as student housing. The responsibility for the learning environment, including prevent discrimination, is subject to universities and university colleges. This responsibility also includes questions about individual adaptation of the examination. The institution shall, as far it is possible and reasonable, arrange for students with special needs. Facilitation must not lead to a reduction of the academic requirements of each program according to the act relating to universities and university colleges. The government has a goal that higher education should be organized so that all students, even those who are in need of adjustment during the study, may be admitted to and implement education. Today there are a number of statutory instruments that could help the students get a study and examination situation that is tailored to the individual student's needs. A keyword here is cooperation between the student and the institution of good and appropriate solutions. This collaboration will ensure the academic requirements of the examination while the student receives a reasonable degree of facilitation. A plan of study could help to protect students' rights in this respect, since such a plan would raise awareness to institutions of their responsibility to facilitate the situation of those who have special needs. According to the act relating to universities and university colleges there shall also be a learning sample at the institution to contribute to students' learning environment is safeguarded.

State (public) universities and university colleges may not charge fees from students neither for regular courses leading to a degree nor for professional training courses. A small fee has to be paid each semester to the student welfare organization.

Private universities and university colleges shall ensure that the state operating grant and fees from the students are used to the benefit of the students. Institutions receiving state funding may not give financial dividends or in any other manner transfer profit to the owner or close associates of the owner.

The State Educational Loan Fund allocates grants and loans to pupils and students according to an official cost of living estimate, stipulated annually. The support is meant to cover expenses for accommodation, subsistence costs and study materials. Means testing of the parents' economy was disbanded in the early 1970s. There are special arrangements for maternity leave, illness and students with children. The size of the grant also depends on the income of the student and the income of spouse or cohabitant.

Loans are interest free during the studies. In cases of low income, unemployment, illness, childbirth or care of small children, repayments may be postponed for a period and the interest can be waived. All, or parts of the loan, may also be cancelled if illness prevents the person from working.

6 Pressing issues and targeted measures

The overall goal for the inclusion policies is that each person shall have equal opportunities to participate in society.

6.1 Measures targeting persons with disabilities/impairments

In primary and lower secondary education and training, the proportion of pupils requiring special needs education has been fairly stable at around 8 percent. The extent is at its highest in the 10th grade with 10 percent, and lowest in the first grade with 3.8 percent. 2.7 % of children in kindergarten receives special pedagogical assistance in accordance with the Education Act. The gender distribution in special needs education has remained stable for a long time, with boys accounting for around 70 percent.

Children with disabilities have the right to equal opportunities for education as other pupils and students. Since 2018 the regulations on universal design of ICT (information and communications technology) applies to the education sector. All new ICT in the education sector is to be universally designed as from 2018, and all existing ICT intended for the general public's use is to be universally designed as from 2021. This applies to web- based solutions such as schools' websites, learning materials and learning platforms. Due to the curriculum reform The Learning Promotion 2020 most learning resources is undergoing major revisions. Therefore, most digital learning resources and content and will be accessible to all from fall 2020.

6.2 Initiative to reduce drop-out at upper secondary level

National and international tests show that too many Norwegian pupils in basic education do not perform at the level of national ambitions and expectations and fail to acquire the necessary basic skills at an early stage. Thus, too many pupils with weak school results are complete compulsory school. They face problems and risk dropout when entering upper secondary education and training. Since linguistic minority students tend to score lower than linguistic majority students, and students with highly educated parents tend to get better results in basic education than learners who have parents with little education, some argue that the education system to some degree contributes to reproducing social inequalities.

Program for better completion (Program for bedre gjennomføring) is an initiative to share experiences and knowledge on who county authorities can work systematically to increase the completion rate in upper secondary education. Four effect studies have been conducted and reports published in 2019 and 2020 on targeted teaching in mathematics, psychosocial learning environment and a model to reduce systematic drop out.

Another initiative is the social contract 2016-2021 (Samfunnskontrakten) in upper secondary vocational education and training (VET). The initiative is an agreement with the social partners to increase the number of apprenticeship placements in VET. From 2012 to 2019 the number of new apprenticeship contracts have increase with 24 percent. In 2019, 23 000 new apprenticeship contracts were signed, the highest number registered.

The COVID-19 crises have led to challenges in VET. In week 18, 4379 apprentices were laid off. The number has now decreased. However, it is still at around 1600, and 5 percent of the apprentices in VET are still laid off. The government has launched different initiatives to address the challenges in VET.

To reduce drop-out and increase completion rates will be a main focus in the White Paper (Report to the Storting) on upper secondary education in 2021.

6.3 Fighting bullying and harassment in kindergartens and schools

The Government has both preventive and legislative measures to fight bullying in kindergartens and schools. Preventive measures involving pupils at an early age are of high priority.

The new core curriculum introduced in 2017, as well as the new subject curriculum ("The Knowledge Promotion Reform 2020") imply that schools shall provide the pupils with the opportunity to participate in and learn what democracy means in practice, and it emphasises that they shall learn to respect that people are different and have different opinions and learn to solve conflicts peacefully and respectfully. With the new curriculum, we place more emphasis on values in the school, such as human dignity, tolerance, equality and respect. The school should disseminate knowledge and convey attitudes that secure these values. This is the entire school's responsibility. All students should be treated equally, and no students should be subjected to discrimination. This is clear in the overall section, which is a kind of constitution for the school. It also states that in the work of developing an inclusive and inspiring learning environment, diversity should be recognized as a resource.

In addition to a responsibility for awareness raising, the school also has a responsibility through the curriculum to provide students with training on this theme. For example, the curriculum states:

"In Social Studies, students are to reflect on similarities and inequalities in identities, ways of life and cultural expression and discuss opportunities and challenges of diversity. In Religion the subject should contribute to the students developing interest and respect for each other regardless of cultural, social, religious background. The course aims to help students develop diversity skills."

The new law concerning school environment and bullying entered into force in August 2017. The principle is a zero-tolerance approach to bullying. Pupils have a right to feel safe and content at school.

The school has a duty to act, which means that everyone who works at school must intervene and report to the school's leaders if they see / hear or are notified that some students do not feel safe and well at school. Students who feel that they have been offended, discriminated against or do not feel safe and well can also report this to their teacher or other adults at school. Then an action plan must be prepared and different actions that will be individually considered take place until the pupil feels safe.

The schools' duty to act to ensure that all pupils have a safe and beneficial learning environment, also applies in cases where digital bullying takes place outside school hours and has an impact a pupil's well-being and security in school. Also, in these cases, a plan of action must be made and evaluated until the pupil experiences a safe and good learning environment at school. Incidents that occur among pupils after school can affect how a child feels at school. If something has happened online that makes a child feel uncomfortable at school, the school must address the problem – even if the underlying reason is something that has occurred

outside school grounds. This means that the school may have a responsibility even for bullying that happens after school, e.g. online, on the way to school or at football practice. What matters is whether the pupil feels happy when at school. Whatever the underlying reasons, it shall not stop the school from addressing the problem.

According to the Education Act, the school may decide to move a pupil to another school, if the pupil's behaviour seriously affects the safety and learning of other pupils. However, the school cannot make the decision if less intervening measures can remedy the situation. To move a pupil to another school will only be done in extraordinary cases and has only rarely been used as an option.

If the pupil (parents) feel that the school has not done enough to stop the bullying, they can report the matter directly to their County Governor who ensure that the school observe the laws and regulations concerning pupils' well-being. If the County Governor's office believes that the school has not fulfilled its obligations, it may instruct the local authority to act to ensure that the pupil in question can feel safe and happy at school. It may also stipulate concrete measures that the school must take. The best interests of the pupils are the primary consideration when the County Governor addresses the case.

The Education Act clearly stipulates that the best interest of the pupils shall be a primary consideration no matter what the case may be, and every child is entitled to express their views and to be heard. This is a principle stated in the UN Convention on the Rights of the Child. Norway has ratified the agreement.

Among the preventive measures are efforts to increase competence among adults to strengthen the ability to prevent, detect and deal with bullying and to develop safe learning environments. In the state budget for 2020, the government sets aside 117 million NOK for efforts against bullying in schools and kindergartens.

Among the preventive measures is the Government's package to help schools tackle bullying and encourage good learning environment. It has been important that the support is differentiated and adapted to the learning environment or bullying challenges that each municipality experiences in kindergartens and schools. Therefore, the municipalities have been offered three alternative competence development packages within the initiative:

1. Strengthened efforts with the use of external mentors for kindergartens and schools with significant bullying challenges, called the Learning Environment Project.
2. Kindergarten- and school-based competence development with learning networks and gatherings for the participants, intended for schools and kindergartens in need of some support.
3. Online competence development. Support for kindergartens and schools that want to further develop competence in promoting good and safe environment and preventing bullying and other offenses, and who do not need other support for development work.

The "Learning Environment Project" is a project to improve the learning environment at schools with persistently high bullying numbers. It has been going on since the autumn of 2013. The evaluation conducted in 2018 showed that all the schools that participated in the project went from having a bullying percentage that was above the national average to clearly below.

From 2018, a national scheme with "bullying ombudsman" was established for all children and pupils in kindergarten and primary school in all counties. The "bullying ombudsman" is allowed to work independently of the school owner. The ombudsmen will strengthen the local work against bullying in kindergartens and schools. Together with the government's other measures against bullying, this will help to reduce the number of children and pupils being bullied and help those who are being bullied more quickly.

The Pupil Survey is an annual survey that allows pupils and apprentices to express their views on the learning environment in their schools and training establishments. It is mandatory at levels 7, 10 and 11. However, this survey is voluntary from level 5 up to level 13 and the participants are anonymous.

Recent years' research show that more and more students are getting a safer and better school day with less bullying. In the Pupil Survey from Autumn 2019, 6,0 percent of the pupils responded that they were bullied at school 2-3 times a month or more often. This was a decrease of 0,1 percentage points from the year in advance, which was the best results since the measurement started. In addition, we have the largest participation in the Pupil Survey since we started. In 2019, more than 450000 pupils participated.

Research on bullying has shown that the incidence of bullying decreases with age and that boys are bullied more than girls. This also corresponds to the findings in the Pupil Survey.

In 2016 the government presented future policies in the fight against bullying in Norwegian schools and kindergartens. It is important to note that kindergartens are a part of the policies. 91 % of Norwegian children participate in kindergarten, and therefore it is an important arena for aiding the development of good social skills and early intervention against bullying.

The policies consist of measures within three areas. The areas are better knowledge in schools and kindergartens on how to prevent, uncover and stop bullying, better support and guidance, especially for children and their parents, and a better legal framework.

The "Partnership against bullying", covering the period 2016 – 2020, was signed by the Norwegian Prime Minister, the Minister of Education and several other partners. Within the framework of this binding partnership for good, inclusive childhood and learning environments from kindergarten through upper secondary school, the government has launched several measures to combat bullying at local and school levels.

6.4 Measures to fight racial discrimination

Norway is becoming an increasingly multicultural society due to increased immigration particularly during the last two decades. This is an enrichment to our society, but it is also a challenge to ensure that all citizens are fully included in all parts of society, and particularly in the education system.

The education system carries an important responsibility to teach young people from an early age respect and tolerance.

The Government has introduced several initiatives targeting children and young people. Most of the initiatives referred to below apply from early childhood education in kindergarten to upper secondary education.

6.5 DEMBRA

Democratic Mobilisation against Racism and Anti-Semitism (DEMBRA) is a programme for schools for the prevention of racism, group-based hostility and antidemocratic attitudes.

DEMBRA is a programme for professional development amongst teachers, school leaders and other school staff., in primary school, secondary school, upper secondary school and is also a offer to teacher training institutions. DEMBRA is based on the principle of participation and inclusion based on knowledge, critical thinking and diversity competence.

DEMBRA supports schools through teacher training and a process of school development. Guided by experts, schools engage in mapping, analysing and responding to local challenges related to group hostility and undemocratic attitudes. DEMBRA builds on the understanding that the role and strategies of schools in the broader societal task of enhancing cohesion and preventing group enmity should be grounded in pedagogy, the mandate of schools and the competence of teachers.

Based on the school's own circumstances, DEMBRA's pedagogical model of prevention recognizes that a democratic culture, based on participation and critical thinking, offers the best means of preventing and counteracting attitudes that threaten democracy. This is based on insights from research on prejudice and group enmity. Prejudice and hatred towards a defined "other" provide us with a sense of identity and of belonging to a distinct "us". Prevention must therefore begin with opportunities for participation in inclusive communities that are not based on negative notions of "the other." Knowledge, critical thinking, and curiosity allow us to discover nuances that undermine stereotypes of "the other" and are therefore also key components of preventive efforts.

DEMBRA learning resources are available at dembra.no in all the Scandinavian languages and in English. The national DEMBRA Programme in Norway is coordinated by The Norwegian Centre for Holocaust and Minority Studies in Oslo.

6.6 Action plan against racism and discrimination based on ethnicity and religion

The Government recently launched an action plan against racism and discrimination based on ethnicity and religion, covering the period of 2020-2023. It aims to combat racism, religious discrimination, anti-Semitism, negative social control and prejudice based on ethnicity. The action plan presents numerous measures across sectors including the area of education. The Government believes good quality education in kindergartens and school is key in fighting discrimination and exclusion.

6.7 Action plan against discrimination of LGBTI

The Government aims to ensure LGBTI people's rights, promote openness and actively combat discrimination. The latest Norwegian government's action plan against discrimination based on sexual orientation, gender identity and gender expression covers the period of 2017 - 2020. The plan contains 40 measures covering a range of areas of society. It implies a broad effort to

develop and spread more knowledge about the challenges LGBTI people face and how authorities, companies and service providers can provide the best possible assistance and support. LGBTI children can face many challenges at home, school and while playing. It is therefore important that schools and day care facilities receive better training about young LGBTI persons⁸.

6.8 Financial support of students with special needs

The Norwegian student support system has mainstreaming as its major feature, providing basic loans and grants to all resident students in higher education through the State Education Loan Fund. Special grants are provided for students who fall ill or have children. During recent years, the system has been extended with special schemes for disabled students. These schemes allow additional grants, support during the summer months and additional coverage when the disability causes delays in study progress.

Pupils in upper secondary education and training may be eligible for grants from the State Educational Loan Fund. The grant is means-tested and is provided to a minority of pupils, especially from low-income, one-parent households.

6.9 Measures to encourage, facilitate and support Adult Learning

Two large OECD surveys on basic skills in the adult population gave Norway a high score compared to other countries. Nevertheless, estimates say that still some 400 000 adults lack the level of basic skills they need to be completely functional in society and in the work force.

6.9.1 SkillsPlus

In response to these challenges, the Norwegian government established in 2006 a national programme called Basic Competence in Working Life, BCWL. The programme concentrates on reading, writing and numeracy, and digital and oral skills. Courses in Norwegian language and a scheme for the voluntary sector was added to the programme in 2015–16, and the name has been changed into SkillsPlus (Kompetansepluss). Skills Norway has the responsibility for developing and running the programme. The essence of Skills plus is that the basic skills and Norwegian or Sami language training should be combined with practical work – or daily life activities. SkillsPlus is available for working life and for civil society. It is for the training of persons who need to boost their basic skills, and also for workers who need an apprenticeship certificate combined with basic skills, Norwegian or Sami language training. Any private or public enterprise in Norway, as well as voluntary organisations, can apply for funding from the programme.

6.9.2 On-the-job trade certificate

Employees without formal education relevant to their work, may since 2018 obtain a trade certificate while in paid employment (Fagbrev på jobb). To qualify for this training scheme, the participants must have a minimum of one year's relevant practical experience and be employed in at least a 50 per cent position throughout the entire course. Their non-formal learning will be validated. The participants are exempted from the common core subjects of the national curriculums, the training is individually adapted, and basic skills is an essential part of the training. The competence requirements in the apprentice subject and to pass the certificate are,

⁸ <https://www.regjeringen.no/en/dokumenter/action-plan-against-discrimination-based-on-sexual-orientation-gender-identity-and-gender-expression/id2505393/>

however, the same as for other apprentices. Cooperation between participant, employer and county administration is a key factor in this model.

6.9.3 The Skills Programme

The Skills Programme (Kompetanseprogrammet) is a part of the skills reform Learning throughout life (Lære hele livet) and was established in 2020. The Skills Programme consists of three parts: The sectorial programme (Bransjeprogrammet), funding for flexible further education that is relevant for working life and piloting of incentives for lifelong learning.

6.9.4 The sectorial programme

The Norwegian government has established eight sectorial programmes for lifelong learning, in which the social partners – the Government, the Employers Federation and the Employee organizations – cooperate to enhance the participation in lifelong learning to strengthen different competencies in the chosen sectors. The partners combine their efforts to find what skills the sectors need and want to strengthen. The educational courses are open to both employed and laid-off/unemployed and can be combined with participation in the workforce as the instruction is based online.

6.9.5 Flexible further education

The aim of the flexible courses that are a part of the current skills reform in Norway, is to provide funding for enabling better access to flexible and work-relevant courses focusing on digital skills for, as well as enhancing the cooperation between higher educational institutions and the private sector in developing flexible learning courses.

6.9.6 COVID 19 relief package

The sectorial programme has been extended because of the COVID 19 situation. Another part of the relief package battling the consequences of the COVID-19 pandemic, is a grant of NOK 100 000 000 to expand existing online-based courses. The purpose is to allow those without employment to quickly gain new competencies relevant to the workforce. Furthermore, the funding of apprenticeship scheme of SkillsPlus is more than doubled compared to 2019. The government has also allowed those receiving unemployment benefit to enrol formal education until the end of 2020.

6.9.7 The Framework for Basic Skills

All training in the BCWL program must be based on the national Framework for Basic Skills, which contains competence goals for reading and writing, mathematics, digital competence and oral communication. It also contains teacher guidelines, professional development systems, tests and tools.

The standards descriptions for each of the basic skills have three levels. Each level is described in terms of intended learning outcomes. The competence goals are primarily meant to be a tool for the teacher, who can contextualize the different goals to the individual workplace. A handbook has been produced to further assist the teacher in this process.

7 Challenges and targeted measures relating to specific groups

7.1 Sami indigenous people of Norway

Throughout history, the Sami indigenous people of Norway have been victims of discrimination and extensive assimilation policies by the Norwegian authorities. In recent decades, the Sami rights in Norway have gradually been recognized in legislation. Pursuant to the Sami Act, the Sami and Norwegian languages are languages of equal worth. They shall be accorded equal status pursuant to the provisions of chapter 3 of the Sami Act. Some of the provisions are limited to the administrative district for Sami languages, others do not have such geographic limitations. The Act states that the Sami languages may be used in official contexts, and that official information must be adapted for the Sami population. However, challenges arise in connection with the practical implementation of language rights.

The Sami Language Committee presented its report to the Minister of Local Government and Modernisation in 2016. The Language Committee has proposed several schemes and measures to strengthen Sami language rights in a number of areas within the public sector.

The report has been submitted to a broad public hearing and the Ministry of Local Government and Modernisation is working on the follow-up of the report. The follow up is in cooperation with other ministries and in close dialogue with Sámediggi (the Sami Parliament).

The municipalities are responsible for ensuring that kindergartens for Sami children in Sami districts are based on the Sami language and culture. In other municipalities steps shall be taken to enable Sami children to secure and develop their language and their culture. As reflected in the white paper to the Sami Parliament on kindergartens for Sami children in 2012, recruiting kindergarten staff with Sami competence is a persistent challenge. Measures were proposed to amend this as well as developing educational materials to support good practice. The Directorate for Education and Training will have a role in following up relevant strategies put in place in collaboration between the Sami Parliament and the Ministry of Education and Research.

7.2 National minorities in Norway

Groups with a long-standing attachment to the country are defined as national minorities, in accordance with the Council of Europe's Framework Convention for the Protection of National Minorities. In Norway, these minorities are Kvens/Norwegian Finns (people of Finnish descent in Northern Norway), Jews, Forest Finns, Roma and Romani people/Tater (Travellers). The groups are quite varied in regards their interests, needs and access to the educational system.

7.2.1 Action plan against antisemitism 2016–2020

Efforts to combat antisemitism are based on the government's general efforts to combat discrimination, racism and group-focused enmity. The action plan is dynamic, and the measures can be adapted and changed during the action plan period, as we gain new knowledge and experience. Schools are an important arena in preventive work because measures in schools can reach many. Preventing antisemitic attitudes is already within schools' framework and mandate and is part of the comprehensive approach to strengthen pupils'

learning environment. One of the aims of this action plan is to contribute to increased reflection and knowledge about group-focused enmity among student teachers and teachers working in schools. This will make schools better able to work systematically in several areas, including combating antisemitism, racism and undemocratic attitudes. The action plan against antisemitism will be revised in 2020, and a renewed plan will be launched in January 2021.

7.2.2 Tater/Romani minority

The Tater/Romani Committee submitted its report "Assimilation and Resistance" (NOU 2015:7) in June 2015. The report concludes that in the 1900's, Romani People/Tater were subject to harsh assimilation policies by Norwegian authorities. The policies were expressed through laws and legislative decrees that had partly discriminatory purposes and a clear discriminatory effect. These policies have created negative prejudices towards this minority group, and fear and distrust between the minority and mainstream society. The Committee also finds that there is very little dissemination of knowledge about the culture and history of the Romani People/Tater in kindergartens, schools and teacher training programs. The Committee's study of two generations of Romani People/Tater who were subject to assimilation measures show alarmingly high mortality rates and a significantly lower level of education than the population in general. The Government will follow up the Commission's report in the forthcoming White Paper to the Storting (Norwegian Parliament) on national minorities, which is planned presented in 2020.

It is assumed that 500–700 Norwegian Roma have their permanent residence in Norway. The vast majority live in the city of Oslo. Living conditions for Norwegian Roma are worse than in society at large. Several families have complex and difficult life situations and experience poverty. Roma report that they are subjected to discrimination in the housing market, and few seem to be employed. The level of education seems to be substantially lower than in society at large.

An Action plan to improve living conditions for Roma in Oslo was launched in 2009. Its main objective was to combat discrimination against Roma and ensure the minority group better living conditions. The Government received an evaluation of the Action Plan in 2014. The evaluation highlighted the need for a revision of the Government's efforts to improve Roma's living conditions. The Ministry of Local Government and Modernisation funds the municipality of Oslo's programme "school guidance" for Roma pupils. The aim of the program is to strengthen learning outcomes, reduce absence and increase Roma pupil's chances to complete primary education. Oslo municipality have reported an increase in the number of families who contact the school guides.

One of the recommendations in the evaluation is to prioritize children's education. The city of Oslo has employed a teacher, a Roma Guide, who functions as a link between schools and Roma families. This measure has proven to be successful. It has shown to improve the relations between school and home. To follow up the evaluation, two more Roma Guides will be employed. In cooperation with the municipality of Oslo and Norwegian Roma, the Government is also considering how a counselling service for Norwegian Roma can be organized to function as intended.

7.2.3 The Kven minority

The Kven minority in Norway have the right to education in Finnish in Troms and Finnmark if there are at least three pupils within the municipality who ask for it. Finnish and Kven language

have equal standing in the curriculum for Finnish education. The right to education in Kven language is however dependent on available teachers.

The Ministry of Local Government and Modernisation invited Kven organisations and institutions and several government agencies to an input conference on Kven language in April 2016. The focus of the conference was how to make the measures for Kven language more targeted and effective.

In 2014 the Norwegian Directorate for Education and Training developed information materials about Norway's national minorities – for kindergarten and school staff. The publication contains information about Norway's five national minorities and will give a brief introduction to the history, languages and way of life of Jews, Kvens / Norwegian Finns, Forest Finns, Roma (Gypsies), and Romani people /Tater. The publication is aimed at staff in kindergartens and schools and may lead to a better understanding of the backgrounds of minority pupils. The material can also be used when teaching children or pupils about our national minorities. In the Chapter about the Roma the Genocide has been given a particular attention.

The introduction includes a brief section on issues the staff may wish to reflect on if they have children or pupils from national minorities in their kindergarten or school, and it contains extracts from relevant legislation, the Framework Plan and the national curriculum. It also includes extracts from the Framework Plan and national curriculum describing how all children and pupils should learn about our national minorities.

There is no statutory right to national minorities in higher education. However, there is an equal right to admission for everyone that meets the formal requirements. No rules or regulations in Norway prevents or obstructs the access to higher education for students with a non-Norwegian background.

8 Immigrants and refugees

Out of a total population of 5,4 million, there are 979 000 immigrants and Norwegian-born persons with two immigrant parents living in Norway by January 1st, 2020. They live in 356 municipalities, with the largest concentration in Oslo, where they constitute 34% of the population. The immigrants come from 222 countries. Slightly above half of them come from Asia, Africa and Latin-America.

Among immigrants, 26 % have lived in Norway for four years or less. Of the 900 000 immigrants who arrived between 1990 and 2019, 19 % were refugees, 34 % labour immigrants, 36 % family migrants and 10 % came in order to study (Statistics Norway). A substantial number of refugees in Norway have arrived with no or little formal education from their country of origin. Therefore, a strong and clear investment in education, qualification and skills is a priority in our strategy. This will help many immigrants acquire the skills both the immigrants themselves need to enable them to find work and contribute to value creation and welfare.

The Government aims to ensure greater participation in working life and in society in general. The social journey that children and young people with an immigrant background undertake through the education system, proves the importance of education as a tool for social mobility and integration. Knowledge, education and proficiency in the Norwegian language form the most important basis for finding work and building a good life. Knowledge provides insight and understanding of society. Knowledge and good Norwegian language skills are prerequisites for familiarisation with Norwegian society, mastering everyday life, becoming independent and establishing trust and a sense of belonging⁹.

8.1 Children and youth

Norwegian kindergartens shall be inclusive settings that provide children and families with the possibility to participate and be part of the community and fellowship. Many children do not have Norwegian as their mother tongue and learn Norwegian as a second language in kindergartens. Kindergartens must support them in their use of their mother tongue, whilst working actively to promote Norwegian language skills. The government aims to ensure that all children are proficient in Norwegian before starting school. This is fundamental in order to succeed in their continued learning and development, and to their active participation in society. Measures to increase participation of minority languages speaking children in kindergartens have therefore been put in place, such as reduced parental fees and free core time in kindergarten for low income-families and economic support to municipalities in developing reach-out measures. In addition to the latter, the Government made changes in 2020 in the process for applying for a place in kindergartens with the goal of making it easier for low-income families to document their income, thus ensuring these families reduced parental fees and free core hours.

A pilot of universal free core time in kindergartens in municipalities, with a high proportion of migrants, showed good results for later schooling compared to areas without free core time¹⁰. As indicated above, free core time has therefore been made available for children aged 2-5 from low income families.

Norwegian language development and instruction is a prerequisite for the full integration and

⁹ Integration through knowledge – The Government's integration strategy for 2019-2022

¹⁰ Bråten, B., Drange, N., Haakestad, H. og Telle. K. (2014): Gratis kjernetid i barnehager. Sluttrapport. Fafo-rapport 2014:44

inclusion of minority language children and pupils in Norway. In order to enhance integration and language development, the Government grants special economic support to the municipalities through the block grants transferred to municipalities for extra measures in kindergartens and provision of extra mother-tongue and Norwegian language lessons to this group in schools. A special earmarked funding is provided to municipalities in order to support the kindergartens in minority children's Norwegian language development and is used in different ways; bilingual assistants, pedagogical material or Norwegian language activities. In 2019 this funding included 153 municipalities and 88% of all minority language children in kindergartens. Out of a total of 636 250 pupils at Norwegian primary and lower secondary level in the school year 2019-2020, 41 003 pupils received special instruction in Norwegian.

The high rise in immigration in 2015 called for immediate action to assist the school owners. One of the measures was the "school box": the website skolekassa.no with learning tools in several languages to support children living in reception centres learning Norwegian and other subjects. The Directorate for Education and training have created a website with guidance to kindergartens and schools on refugees. This includes four articles providing guidance on the reception, on post-traumatic stress etc.¹¹

There are also available online bilingual resources like LEXIN (a dictionary) and Bildetema (dictionary with pictures). Since 2009 we the Directorate of Education and Training and the National Centre of Multicultural Education (NAFO) have developed Tema Morsmål (morsmal.no) which is a webpage with multilingual resources for kindergartens and schools. The project Flexible education is organized by NAFO. Flexible education offers bilingual teaching online within mathematics and science for the Arabic, Somali and Tigrinja languages. The project started in January 2017 and has been evaluated and shows good results both when it comes to learning subjects and learning Norwegian. From August 2020 the project will be a permanent offer and is now being further developed.

There have been several measures over the last years to strengthen the competence on multicultural perspectives and second language acquisition, among those the revised teacher education programme, and the "Competence and diversity strategy" (2013-2017) for kindergartens and schools. The integration strategy from 2019 *Integration through knowledge*, cf. chapter 9.2, includes several measures to improve education for language minority children. The measures are within two effort areas:

- strengthening early efforts to develop skills in Norwegian language, basic skills and subject competences
- increasing the competences among employees in kindergartens, primary school, lower- and upper secondary school, in order for them to be able to support migrant children and youth throughout the whole education system the measures will be implemented between 2019 and 2022.

One of the measures in this chapter is to implement a project of recruiting Specialist Teachers in different subjects and areas of specialisation in schools. From the autumn of 2019, we included specialists in teaching language minority students. These teachers are also to be responsible for contributing to improving the competence of their colleagues.

¹¹ The Norwegian Directorate for Education and Training (2020)

Another important measure is to *Increase our knowledge about what works for newly arrived students*, particularly as regards their learning and wellbeing. A report written for the Ministry of Education and Research concludes that there is limited evidence of the effects of educational programmes and measures targeting newly arrived students¹². In 2020 we have initiated a feasibility study that will allow researchers to describe educational programmes and interventions for newly arrived students and discuss the challenges and opportunities of investigating the effects of such programmes. If feasible, such models will be implemented and evaluated on a larger scale in the following years. If not feasible, we will consider implementing and evaluating alternative models.

The Integration Strategy also contains measures to improve education for youth and adults with an immigrant background. This includes facilitating ordinary secondary education to participants in the Introduction program, and to others who need this. This might be vocational training combined with language training and primary education, modulated training that is being tested in several municipalities, or ordinary secondary education.

Since 2008 some upper secondary schools have had a minority counsellor dedicated to work with students with minority background. The minority counsellors are mainly in contact with students who are, or are at risk of, being exposed to negative social control, forced marriage, genital mutilation, or honour-related violence. Their main task is to guide and follow up students who experience these issues, and to work preventively.

Since the establishment of the minority counsellor service, it has been expanded and strengthened financially several times, and holds at present 49 minority counsellors. The Directorate of Integration and Diversity (IMDi) is responsible for the training of the counsellors.

8.2 Higher education

In 2019, 36 % of all Norwegian residents in the age group 19-24 attended higher education. The percentage was 45 for descendants of immigrants (persons born in Norway of two foreign-born parents). 21 % of immigrants, born outside Norway, in the same age group were enrolled in higher education. Also, in the age group 25-29, the share of Norwegian born people with two foreign-born parents was higher than the for the total age cohort; 20 % compared to 16. In this age group, the share of immigrants was only 10 %. One reason for the lower attendance is that fewer attend upper secondary education, and the drop-out rate is high for this group. Many immigrants arrive late in the school age, and therefore have less time to learn sufficient Norwegian to have a high learning outcome and to be able to complete upper secondary school. In addition, many immigrants arrive primarily to work, and are therefore not enrolled in higher education. In the age group 19-34, more women attend higher education than men in the general population: 24 % of the women and 16 % of the men, respectively (2019). Among the Norwegian born women with foreign-born parents, 35 % of the women were in higher education while 27 % of the men in the same category. Among the immigrants, the rates were 12 and 8 % for women and men, respectively.

Norwegian born people with two foreign-born parents tend to attend prestigious study programs like medicine, dentistry, business, law and engineering. Their entry qualifications are above average.

¹²Wollscheid et al. 2017

8.3 Introductory programme for refugees

The purpose of the introduction scheme is to achieve swift integration for refugees into social and working life. From September 1st 2004 newly arrived refugees between 18 and 55 years of age have a statutory right and obligation to full-time training for basic qualifications through an introduction program¹³ This also applies to persons granted residency on humanitarian grounds, persons who have collective protection and those who immigrate in order to be reunited with family members in these categories. In 2019 approximately 20 000 immigrants participated in such courses.

The municipalities where the refugees settle are responsible for delivering and adapting the introduction programme to the individual. The language training has to be in accordance with the national curriculum in Norwegian language and social studies for adult immigrants and must be provided within three months after settlement.

Various forms of working life practice are included in the programme. «Language practice» is a method used in the Norwegian language training process. The idea is that an enterprise accepts a refugee for a shorter period of time. The aim is to give the learner language practice that is connected with working life. Job practice is intended to give the individual working life experience and improved possibilities of a positive entry into the labour market. The government provides the municipalities with an earmarked per capita grant varying with the participant's national background, test results from the courses, and other criteria.

The Norwegian language training and social studies form an essential part of the introductory programme. It is also provided to a larger target group than the participants of the introductory program. The right and obligation to participate in free Norwegian language training and social studies applies to foreign nationals between the ages of 16 and 67, who have been granted a residence permit under the Immigration Act.

The municipalities are responsible for offering such training. The program should consist of 600 hours tuition, of which 50 hours are social studies in a language the participant understands. Someone who needs further training may receive up to 2 400 additional hours, depending on individual needs. The municipalities receive government grants for this purpose.

Third country labour immigrants, if eligible for permanent residence, are obliged to participate in language training and social studies, but only for 300 hours. They have to pay a fee to the provider of the course. Citizens from EEA/EFTA-countries, using their right to free mobility, have no right nor duty to participate in such training.

During 2019, approximately 34 000 persons participated in the Norwegian language training and social studies.

¹³ The Introduction Act of 2003, has been amended several times. It regulates the introductory program and Norwegian language training and social studies for newly arrived immigrants.

The Introduction Act is now being revised and a new act of integration are planned to be implemented in 2021

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